

The Bureau Of Energy Efficiency (Appointment Of Members, Manner Of Filling Vacancies, Fees And Allowances And Procedure For Discharging Their Functions) Rules, 2007

Source: <https://indiankanoon.org/doc/46843076/>

[Skip to main content](#)

[Legal Document View](#)

[Tools for analyzing structure and cite text of judgments](#)

[Unlock Advanced Research with](#)

[PRISM](#)

[AI](#)

Integrated with over 4 crore judgments and laws ? designed for legal practitioners, researchers, students and institutions

-

[Know your Kanoon](#)

-

[Doc Gen Hub](#)

-

[Counter Argument](#)

-

[Case Predict AI](#)

-

[Talk with IK Doc](#)

-

...

[Upgrade to Premium](#)

[\[Cites](#)

0

, Cited by

0

]

Union of India - Act

The Bureau Of Energy Efficiency (Appointment Of Members, Manner Of Filling Vacancies, Fees And Allowances And Procedure For Discharging Their Functions) Rules, 2007

UNION OF INDIA

India

The Bureau Of Energy Efficiency (Appointment Of Members, Manner Of Filling Vacancies, Fees And Allowances And Procedure For Discharging Their Functions) Rules, 2007

Rule

THE-BUREAU-OF-ENERGY-EFFICIENCY-APPOINTMENT-OF-MEMBERS-MANNER-OF-FILLING-VACANCIES-FEES-AND-ALLOWANCES-AND-PROCEDURE-FOR-DISCHARGING-THEIR-FUNCTIONS-RULES-2007 of 2007

Published on 3 August 2007

Commenced on 3 August 2007

[This is the version of this document from 3 August 2007.]

[Note: The original publication document is not available and this content could not be verified.]

The Bureau Of Energy Efficiency (Appointment Of Members, Manner Of Filling Vacancies, Fees And Allowances And Procedure For Discharging Their Functions) Rules, 2007

Published vide G.S.R. 537(E), dated 3.8.2007, published in the Gazette of India, Extraordinary, Part II, Section 3(i),

dated 6.8.2007.

10.

/525

In exercise of the powers conferred by section 56 read with sub-section (5) of section 4 of the Energy Conservation Act, 2001 (52 of 2001), the Central Government hereby makes the following rules, namely:--

1.

Short title and commencement .-(a) These rules may be called the Bureau of Energy Efficiency (Appointment of Members, Manner of Filling Vacancies, Fees and Allowances and Procedure for Discharging their Functions) Rules, 2007.

(b)

They shall come into force on the date of their publication in the Official Gazette.

2.

Definitions .-In these rules, unless the context otherwise requires,-

(a)

"Act" means the Energy Conservation Act, 2001 (52 of 2001);

(b)

"Director-General" means the Director-General of the Bureau appointed under sub-section (1) of section 9;

(c)

"meeting" means the meeting of the Governing Council and shall include any other business connected with it;

(d)

"Member" for the purposes of these rules means a Member of Governing Council referred to in clauses (o), (p) and (q) of sub-section (2) of section 4;

(e)

"section" means a section of the Act;

(f)

Words and expressions used herein and not defined but defined in the Act shall have the meanings respectively assigned to them in the Act.

3.

Appointment of Members .-(1) The Central Government shall appoint the following Members of the Governing Council, namely:--

(a)

Five Members, one each from the five power regions under clause (o) of sub-section (2) of section 4.

(b)

Four Members, one each from the industry, equipment and appliance manufacturers, architects and consumers under clause (p) of sub--section (2) of section 4.

(c)

Two Members as may be nominated by the Governing Council under clause (q) of sub-section (2) of section 4.

(2)

For the purpose of clause (a) of sub-rule (1), the Central Government shall appoint the respective Chairmen of Northern, Western, Southern, Eastern and North-Eastern Regional Electricity Board as Members representing the respective States of each region.

(3)

For the purpose of clause (b) of sub-rule (1), the Central Government shall appoint Members in the following manner, namely:--

(a)

one person having adequate knowledge, experience or capability in dealing with matters relating to promotion of energy efficiency or energy conservation, who in the opinion of the Central Government is capable of representing industry;

(b)

one person having adequate knowledge, experience or capability in dealing with matters relating to promotion of energy efficiency or energy conservation, who in the opinion of the Central Government is capable of representing equipment and appliance manufacturers;

(c)

one person having adequate knowledge, experience or capability in dealing with matters relating to promotion of energy efficiency or energy conservation, who in the opinion of the Central Government is capable of representing the profession of architects; and

(d)

one person having adequate knowledge, experience or capability in dealing with matters relating to promotion of energy efficiency or energy conservation, who in the opinion of the Central Government is capable of representing the consumers.

(4)

For the purpose of clause (c) of sub-rule (1), the Central Government for making appointments shall seek nominations from the Governing Council from the areas identified to focus attention for promotion of energy efficiency or energy conservation from amongst the following, namely:--

(a)

Major energy users like Railways, Surface Transport, Power Generation, Steel and Heavy Industries and Urban Development.

(b)

Financial Institutions, Small and Medium Enterprises, Test Houses, Designated Consumers, Research Institutions and Management Institutions specialising in the field of energy efficiency, energy conservation or energy management.

(5)

The Central Government shall, for the purposes of selecting the Members under sub-rule (3), constitute a Selection Committee consisting of:-

(a)

Additional Secretary or Joint Secretary, in-charge of energy efficiency or energy conservation in the Ministry of the Central Government dealing with power

?Chairperson

(b)

An officer not below the rank of Joint Secretary to be nominated by the Secretary in-charge of the Ministry of the Central Government dealing with power

?Member

(c)

Director-General.

?Member

(6)

The Director-General shall be the convener of the Selection Committee.

(7)

The Selection Committee shall finalise the selection of the persons referred to in sub-rule (3) within three months from the date on which the term of the existing Members is to expire.

(8)

The Selection Committee shall recommend a panel of two names for each of the categories referred to in sub-rule (3).

(9)

The Selection Committee shall satisfy itself that such persons do not have any financial or other interest which is likely to affect prejudicially their functions as Members.

4.

Vacancies .-(1) If, for reason, other than temporary absence, any vacancy occurs, the Central Government shall appoint another person in accordance with the provisions of these rules, to fill the vacancy.

(2)

A Member who has completed his term shall be eligible for further appointment.

5.

Resignation .-(1) A Member may, by notice in writing under his hand addressed to the Central Government, resign his

office and the resignation shall take effect from the date of its acceptance by the Central Government or on the expiry of the period of one month, whichever is earlier.

6.

Fees and allowances .-(1) Every ex officio Member and Members representing the Departments of the Central Government, State Governments and Organisations associated with or under the Central Government and State Governments shall not be entitled to draw any fee, travelling allowance or daily allowance from the funds of the Bureau.

(2)

Every other Member shall be entitled to a sitting fee of Rupees five hundred only for attending a meeting.

(3)

A local Member shall be entitled to reimbursement of local conveyance hire charges by way of actual conveyance hire charges subject to such ceiling as may be specified by the Central Government from time to time for attending each meeting.

Explanation .-A meeting extending over one sitting shall be treated as one meeting.

(4)

A Member may travel by rail in first class or second AC tier, by trains, including Rajdhani Express, Shatabadi, etc., by shortest route, or by air by economy class from his usual place of residence and back for attending the meetings and in case he travels from a station other than the usual place of his residence, the re-imbursement of fare will be restricted to that from the place of residence.

(5)

Where journeys are performed by road, the re-imbursement will be limited to first class fare by rail.

(6)

(a)

An outstation Member shall be entitled to re-imbursement of single room rent--

(i)

for stay in any Government guest house or hotels, single room in medium range India Tourism Development Corporation hotels like Janpath Hotel or residential accommodation provided by registered societies like India International Centre or India Habitat Centre;

(ii)

for stay in private lodges or hotels at such rates as may be allowed upto the limits specified by the Central Government from time to time.

(b)

Daily allowances at the rate of 90% of the ordinary rates of daily allowances as admissible to the highest grade of civil servant for boarding purposes as specified by the Central Government from time to time.

(c)

Actual conveyance hire charges subject to such ceilings as may be specified by the Central Government from time to time.

7.

Procedure to be followed by Members in the discharge of their functions .-(1) The participation by a Member in a meeting shall be regulated by the Bureau of Energy Efficiency (Procedures for Conduct of Business of the Governing Council) Regulations, 2005.

(2)

Every Member, while participating in a meeting, shall inform the Chairperson or in his absence, the Presiding Officer, that he or any of his relatives or friends has a pecuniary interest in the matter being considered in the said meeting and thereafter shall abstain from attending the meeting till discussion on such matter is over.

Related AI tags, queries and research notes

Translation